

LIVE

Learning Space

NEWSPAPER 20th September, 2017

ITEM WISE EDITORIALS

38th WEEK



ROHINGYA...

VARIOUS ASPECTS

UPSC CSE – GS II

GS II... INDIA AND ITS NEIGHBORHOOD- RELATIONS.



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NEWSPAPER EDITORIALS ... DISCUSSION

20th SEPTEMBER, 2017

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Targeting refugees

The Centre has revealed a disturbing intent to push the Rohingyas back to a conflict zone

The Union government's position that it considers Rohingya refugees from Myanmar's Rakhine state as a potential security threat is a disturbing attempt to paint the persecuted community in a poor light so that it could justify their deportation in future. While some degree of caution is necessary in dealing with any unusual flow of refugees from a conflict-hit region, the imputation of collective motivation to the Rohingyas refugees in the country, estimated to number about 40,000, is heartless. The Centre's affidavit to the Supreme Court contains self-serving arguments: that providing for refugees from out of the country's limited resources would have an adverse impact on its citizens, as they would be deprived of their legitimate share in employment, housing, educational and medical facilities; that there is growing stridency in Rohingya militancy; and that Buddhist citizens face threat of violence from the refugees. Whether or not these assertions are based on facts, they disregard the wider context. Myanmar refuses to accept most Rohingyas as its citizens, rendering them stateless, and hundreds of thousands have fled to Bangladesh in just the past few weeks. The intention to deport them by itself constitutes an unusual abandonment of humanitarian principles, as India has an exemplary record in taking care of refugees from many countries since Independence. India is not a signatory to the UN Convention on Refugees, 1951, but it has so far adhered to its normative standards. It has played host to refugees of all hues, and stood by the principle of non-refoulement, under which refugees cannot be forced to return to conditions of danger.

Non-refoulement has now evolved into a peremptory norm that every country is expected to follow. The existing law on the subject as well as some judicial decisions do support the norm that deportation of illegal immigrants is a matter of executive policy. It is also true that the fundamental rights relating to movement and settlement within the country are available only to citizens, but it cannot be forgotten that the right to life and liberty under Article 21 is not confined to citizens, but anyone who has to face the rigours of law on Indian soil. As the Centre asserts, it does have a procedure to pass deportation orders, one that it believes is fair and reasonable. But when an entire class of people is identified for deportation and accused of plotting against the host country, it is unlikely that fairness can be assured in every case. India may have strategic and diplomatic reasons for backing the Myanmar position with regard to terrorism in the Rakhine region. However, that does not necessarily mean that it should cite vague fears about militants infiltrating the country under the guise of refugees, who happen to be Muslim, to deny safe haven to a largely stateless community.

In Vivekananda's country?

His wise words on sheltering refugees are not reflected in the government's affidavit on the Rohingyas



KARAN THAPAR

Just about ten days ago, on September 11, Prime Minister Narendra Modi admonished a students convention for forgetting the significance of 1893. Many were perplexed until they realised this was the year Swami Vivekananda delivered his famous speech to the World Parliament of Religions in Chicago. As Mr. Modi put it, that date was the original 9/11. "Had we not forgotten the significance of our own 9/11, there would have been no 9/11 in 2001," he added.

Perhaps the Prime Minister has himself either forgotten or is unaware of an important and, today, very relevant boast at the start of Swami Vivekananda's speech. In a critical sentence he said: "I am proud to belong to a nation which has sheltered the persecuted and the refugees of all religions and all nations of the earth."

Unfortunately, that sentiment is

not reflected in the government's affidavit on the Rohingyas presented to the Supreme Court on Monday. Instead, it views them as "a very serious threat and potential threat to national security". It claims "many of the Rohingyas figure in the suspected sinister designs of ISI/ISIS and other extremist groups". It accuses them of "mobilization of funds through hundi/hawala channels". Finally, it adds there's a "serious potential and possibility" of Rohingyas violence against Buddhists in India.

Assertions without evidence

Yet these are simply broad and generalised assertions. So far the government has not submitted a shred of evidence to support them. In fact, there's good reason to disregard or even dismiss these exaggerated fears.

First, whilst it's true that the Arakan Rohingya Salvation Army has connections with Hafiz Saeed and al-Qaeda, it would be grossly unjust to view all Rohingyas as potential terrorists. That leap of logic is akin to a flight of imagination. Or else, because the Lashkar-e-Taiba and Jaish-e-Mohammed and now, perhaps, al-Qaeda and the Islamic



GETTY IMAGES/ISTOCKPHOTO

State conduct operations in Kashmir, this argument should lead to the government viewing all Kashmiris as terrorists!

However, it's not just the government's logic that falls apart; facts also disprove its position. S.D. Singh, the Inspector General of Police in Jammu, where the largest Rohingyas concentration is located, has told NDTV that there are only a few cases of petty crime against them, the sort that poor refugees are often accused of, and they are not a threat to national security. Several other police officers have said that the same seems to be true of Rohingyas settled in Jaipur, Delhi, Chandigarh and parts of Haryana such as Faridabad and Mewat.

Second, the claim that the Rohingyas are carrying out hawala

transactions is nothing but an insult to their poor and wretched status. If they had the money for hawala transactions they would surely spend it on improving their miserable existence. You only have to look at the conditions in which they live to realise how unlikely is this charge. If it were not hurtful, it would be laughable.

Third, the claim that the Rohingyas will indulge in violence against Buddhists in India is simply bizarre. You could just as well say that Hindu refugees fleeing Pakistan and Bangladesh could be a threat to Indian Muslims. This argument suggests the government is dredging up whatever fear it can to demonise the Rohingyas in the eyes of the Supreme Court.

Attempt at avoidance

The government's affidavit is clearly an attempt to get around India's international law commitments and its own constitutional provisions, both of which require the grant of sanctuary to the Rohingyas. That now depends on whether the Supreme Court is intimidated by the government's lengthy affidavit or has the strength to stand up for the prin-

ciples of our Constitution and international law. These are quite explicit.

No doubt India is not a signatory to the 1951 UN Convention on Refugees or its 1967 Protocol, but we are still bound by the many conventions on human rights we have signed. These include the UN principle of non-refoulement, which explicitly forbids the forcible return of refugees. More importantly, the Supreme Court has ruled that the right to life and personal liberty under Article 21 applies to all people in India, irrespective of citizenship. That includes the Rohingyas refugees. The government cannot overlook all of this without shaming India.

Paradoxically, Union Minister of State for Home Affairs Kiren Rijiju has tweeted, "This chorus of branding India as villain on Rohingya issue is a calibrated design to tarnish India's image." The actual truth is that it's the government that's doing the tarnishing. The Supreme Court now has an opportunity to uphold India's self-respect and honour.

Karan Thapar is a television anchor

1 Targeting refugees

Date : 20th September, 2017

The Centre has revealed a disturbing intent to push the Rohingya back to a conflict zone

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THE  HINDU
INDIA'S NATIONAL NEWSPAPER SINCE 1878

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At home and in the world

Deporting refugees would run counter to India's obligations under domestic and international law



SUHRITH PARTHASARATHY

Over the past month, from Cox's Bazar, in the south-east of Bangladesh, smoke can be seen billowing into the grey sky across the country's border. Villages, home to the Rohingya community, in the fractious state of Rakhine in western Myanmar, are being mercilessly, horrifically burnt down. Nurul Islam, a 30-year-old farmer, who had fled to Bangladesh by boat, told *The Economist* that he left his home in Myanmar after the military blasted bullets on villagers and set their houses on fire. They separated the women and men, the magazine reported, and raped Islam's 13-year-old sister Khadija, proceeding to then mutilate her body.

Despite living for centuries in Myanmar, the Rohingyas, who are mostly Muslim, have been denied citizenship and have been rendered stateless. In February, a United Nations report had documented numerous instances of gang rape and killings, including of babies and young children, by Myanmar's security forces. Now, the army's viciousness, already unimaginably ghastly, has escalated even further.

Unfolding catastrophe

By any account, the Rohingyas are at the centre of a humanitarian catastrophe of terrifying proportions. On Monday, the U.N. human rights chief, Zaid Ra'ad al-Husseini, called on Myanmar to put an end to this "brutal security operation". He termed the state's actions against the Rohingyas as "a textbook example of ethnic cleansing". Some would go further. In October, 2015, a Yale Law School study warned that efforts were being made not merely to forcibly dis-



PHOTO BY GETTY IMAGES

place the Rohingyas but towards committing the crime of genocide through the complete annihilation of the ethnic group.

Repercussions of the violence in Myanmar are now being felt around the globe, particularly in nearby countries; in India, where scores of Rohingyas are lodged – reportedly totalling 40,000 – it must come to us as a matter of shame that the state is so much as considering returning the refugees back to the jaws of not merely political persecution but of mind-boggling terror and savagery. Going by the statements made by the Union Minister of State for Home Affairs, Kiren Rijju, quite regrettably, it appears India might find itself committing a grave error of substantial moral purport. Although he's since backtracked from some of his assertions, Mr. Rijju's message, delivered over the course of the last week, remains deeply troubling. "They are doing it, we can't stop them from registering, but we are not signatory to the accord on refugees," he said, in one interview, when asked about the registration of Rohingyas as refugees by the UN High Commissioner for Refugees. "As far as we are concerned they are all illegal immigrants. They have no basis to live here. Anybody who is [an] illegal migrant will be deported."

These threats are not only chilling on a humanitarian level, if translated into action, they would also constitute a contravention of India's obligations under both domestic and international law.

The case in court

Indeed, it is precisely such an argument that a pair of Rohingya refugees, Mohammad Salimullah and Mohammad Shagor, have made in a petition filed in the Supreme Court. Their submissions rest on two broad planks: one, that any deportation would violate their fundamental rights to equality and to life, under Articles 14 and 21 of the Constitution, and, two, that any action by India in returning them to Myanmar would infringe international law, particularly the principle of non-refoulement.

When the case comes up for hearing next, on September 18, in response, the government may expand on Mr. Rijju's statements. It could point out, first, that India is not bound to follow the principle of non-refoulement, since it is not a signatory to the 1951 U.N. Convention Relating to the Status of Refugees, and, second, that, in any event, any deportation would be saved by the exceptions to the principle, in that the Rohingyas are guilty of committing crimes

against peace and are a threat to India's national security. On any close examination, however, these arguments ought to fail.

The principle of non-refoulement is articulated in Article 33 of the 1951 Convention. It mandates that no state shall expel or return a refugee to "the frontiers of territories where his life or freedom would be threatened on account of his race, religion, nationality, membership of a particular social group or political opinion". However, it allows for an exception in cases where there are "reasonable grounds" for regarding a refugee as a "danger to the security of the country". What's more, the Convention also excludes generally from refugee status individuals guilty of, among other things, committing war crimes or crimes against peace and humanity.

Now, India is not a party to the 1951 Convention. But we need to heed the existence of sources of law that stretch beyond treaty obligations. These include norms of customary international law, where binding rules have been crystallised as a result of the practice of states. The principle of non-refoulement is widely regarded as one such rule. In fact, some scholars argue that the principle is so well enshrined that it constitutes a peremptory norm from which no derogation whatsoever is permitted. But even if one were to discount such arguments, there is no denying that non-refoulement is now nearly universally accepted as constituting a fundamental rule of international law.

At least two high courts in India have expressly held that the country is bound to follow the principle. In their judgments respectively in *Kiaer Abbas Habib Al Qutaibi v. Union of India* (1998) and *Dough Lian Kham v. Union of India* (2015) the Gujarat and Delhi High Courts have virtually incorporated non-refoulement into the guarantees of Article 21 of the Constitution. "[The principle's] application," wrote the Gujarat High Court,

"protects life and liberty of a human being irrespective of his nationality. It is encompassed in Article 21 of the Constitution, so long as the presence of a refugee is not prejudicial to the law and order and security of India."

A foundational principle

Now, the Supreme Court in different cases has incorporated other principles of customary international law into municipal law, where there's no local statute embodying rules to the contrary. There's no reason why non-refoulement should be treated any differently. The Supreme Court can have little option but to recognise, as the Gujarat and the Delhi High Courts have done, that non-refoulement is a foundational principle that creates obligations under both domestic and international law alike.

On arguments concerning national security, it might well be true that the state must be accorded an element of latitude in shaping its policies. But, in the absence of any material, the government cannot plausibly be arguing that each of the 40,000 Rohingyas constitutes a threat to India's safety, or that each of them is guilty of committing crimes against peace.

Ultimately, the petitions filed by the Rohingyas refugees are an important test of both the Supreme Court and the Indian state's moral calibre. In an interview on Wednesday, Mr. Rijju urged an end to the "chorus" branding India as a "villain," for its apparent stand seeking to return the Rohingyas, a "calculated design," in his view, to "tarnish India's image."

However, the present crisis goes beyond matters of mere perception. It goes to the root of what it means to be a civilised state, of treating every person, irrespective of constructs of citizenship, with equal care, compassion and respect.

Suhrith Parthasarathy is an advocate practising at the Madras High Court

IMPORTANT QUESTIONS

ESSAY / MAINS / GD / INTERVIEWS

India plans to deport Rohingyas. Discuss the issue keeping in mind 1951 Convention, Customary International Law, Non-refoulement Principle and other High Court judgements.

1

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The Union government's position that it considers Rohingya refugees from Myanmar's Rakhine state as a potential security threat is a disturbing attempt to paint the persecuted community in a poor light so that it could justify their deportation in future. While some degree of caution is necessary in dealing with any unusual flow of refugees from a conflict-hit region, the imputation of collective motivation to the Rohingya refugees in the country, estimated to number about 40,000, is heartless. The Centre's affidavit in the Supreme Court contains self-serving arguments: that providing for refugees from out of the country's limited resources would have an adverse impact on its citizens, as they would be deprived of their legitimate share in employment, housing, educational and medical facilities; that there is growing stridency in Rohingya militancy; and that Buddhist citizens face threat of violence from the refugees. Whether or not these assertions are based on facts, they disregard the wider context. Myanmar refuses to accept most Rohingya as its citizens, rendering them stateless, and hundreds of thousands have fled to Bangladesh in just the past few weeks. The intention to deport them by itself constitutes an unusual abandonment of humanitarian principles, as India has an exemplary record in taking care of refugees from many countries since Independence. India is not a signatory to the UN Convention on Refugees, 1951, but it has so far adhered to its normative standards. It has played host to refugees of all hues, and stood by the principle of non-refoulement, under which refugees cannot be forced to return to conditions of danger.

IMPORTANT QUESTIONS

ESSAY / MAINS / GD / INTERVIEWS

India decided to send back Rohingya muslims. Discuss various aspects in this context



NEWS REPORT

- 1 The position of the Union Government on Rohingyas is that Rohingyas from Rakhine State are a potential security threat.
- 2 They are 40,000 in number.
- 3 In an affidavit filed in Supreme Court, the Government came up with several arguments.





WHAT ARE THESE ARGUMENTS?

- 1 Providing for refugees from out of the country's limited resources would have an adverse impact on its citizens as they would be deprived of their legitimate share in employment, housing, educational and medical facilities
- 2 There is growing stridency in Rohingyas militancy.
- 3 Buddhists citizens face threat of violence from refugees.



OTHER POINTS OF THE AFFIDAVIT BY THE CENTRE

- 1 India views Rohingyas as very serious and potential threat to the national security.
- 2 India claims that many of the Rohingyas figure in the suspected sinister designs of IS/ISIS and other extremist groups.
- 3 It accuses them of mobilisation of funds through hawala channels.
- 4 There is a serious potential and possibility of Rohingya violence against Buddhists in India.

ONE SIDE OF THE PERSPECTIVE

- 1 As per the police officials, there are only a few cases of petty crimes against them and they are not a threat to national security.
- 2 With regard to hawala transactions, it tantamounts to insult to the poor and wretched status. If they had the money for hawala transactions, they should surely spend it on improving their miserable existence.
- 3 The argument that Rohingyas will indulge in violence against Buddhists in India is simply bizarre.

The arguments suggest that Government is dredging up, what ever fear it can to demonise the Rohingyas in the eyes of the Supreme Court.

HOW TO INFER THIS?

1 Myanmar refuses to accept Rohingyas as its citizens.

2 Bangladesh is over burdened with lakhs of refugees

3 It is against India's exemplary record in taking care of refugees from many countries since independence.

4 India is not a signatory to UN Convention on Refugees, 1951 but so far it adhere to its normative standards

5 India stood by the principle of non-refoulement, under which refugees cannot be forced to return to conditions of danger.

6 Fundamental rights relating to movement and settlement within the country are available only to citizens, but right to life and liberty under Article 21 is not confined only to citizens,





India may have strategic and diplomatic reasons for backing the Myanmar position with regard to terrorism in the Rakhine region. However, that does not necessarily mean that it should cite vague fears about militants infiltrating the country under the guise of refugees.

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